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# The Effectiveness of States and International Actors efforts

# in the fight against

# Transnational Sex Trafficking

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## I. Abstract

The increase in transnational human trafficking and specifically sex trafficking is attributed to the fact that globalization has created a new economic model whereby the demand side is constantly seeking cheaper supply side resources to maximize profits. While in the manufacturing of goods this results in "outsourcing" to cheap labor sources, in the services sector it manifests itself through the importation of a cheap, vulnerable and mostly illegal migrant workforce. When applied to the sex trade industry this results in the trafficking of humans and more specifically that of women, a heinous crime that is nothing short of human slavery. The thesis of this paper is that while progress has been made in recent years on the policy and legislative front to enable prevention, protection of victims and prosecution of the perpetrators, enforcement has been largely ineffectual. This is attributed to three major factors. First, the fight against sex trafficking has not reached anywhere near the top of the international community's political agenda. Considering the volatile state of the world today both politically and economically, sex trafficking is largely viewed as part of a general human rights agenda mainly championed by NGOs. Secondly; the advent of the World-Wide-Web has made enforcement much more difficult demanding new enforcement strategies and global coordination for which resources have not been allocated. Thirdly and possibly as a result of the almost universally available high speed, broadband access to the web the sex industry has been commoditized and to some degree legitimized as a sector of the global

tourism industry. No longer is sex trafficking simply an East to West or South to North movement of supply to demand. In some origin countries like Thailand and Cambodia sex trade has become a significant segment of the economy creating demand for intra-state sex trafficking from rural areas to urban destinations. For the stated reasons, a globally coordinated effort to curtail if not eradicate sex trafficking is probably as, if not more challenging than other global efforts to fight transnational crime. By contrast to drug trafficking or international terrorism it does not pose an immediate threat to the population at large and victims of sex trafficking are seldom legal residents of the destination states and thus do not garner enough empathy from the general community. This paper argues that the responsibility for elevating the priority of the fight against sex trafficking closer to the top of the international agenda rests with the political leadership of destination countries, primarily the United States and should not be left only to human rights organizations or other non-governmental organizations including the United Nations. For the fight against sex trafficking to become effective it would first require a much heightened awareness through an increased role of the mainstream media and the global initiatives of NGOs including the United Nations. Also required are greater allocation of domestic resources, greater cooperation amongst international law enforcement agencies and stricter regulations of the use of the internet for distribution of explicit sex material and reducing its role as a marketing channel for the sex industry. The U.S. Federal Government has already demonstrated its ability to curtail illegal on-line activities as is the case with international on-line gambling. The Internet act of 1997 was effective in

imposing severe penalties, on domestic and offshore operators of cyber-casinos, as well as on online gamblers. Sex trafficking is admittedly a more complex problem, but the analogy still holds and it too can and must be stopped.

## II. Introduction

In her publication *The Saga of Susanna* (Susan Tiefenbrun, *The Saga of Susanna A U.S. Remedy for Sex Trafficking in Women – The Victims of Trafficking and Violence Protection Act of 2000* , Utah L. Rev. 107, 2002) the author refers to sex trafficking for what it is: "A contemporary form of slavery that violates women's fundamental human rights, namely the right to life, liberty and security of persons, the right not to be held in slavery or servitude and the right to be free from cruel or inhumane treatment". More than 2 million women around the world are bought and sold each year for the purpose of sex exploitation. The demand for sex trafficking originates mostly from Western democracies with above average socio-economic status and a relatively good record of human rights, whereas the supply side originates mainly from states that are either in political or economical crisis, experience social instability, are poor and have a poor record on human rights in general and cultural attitudes devaluing women's role in society in particular. In the past decade major policy and legislative progress can be attributed to the efforts of the U.N. GIFT (Global Initiative to Fight Human Trafficking) and to breakthrough legislative efforts by the United States and the European Union. Yet the fight to eradicate sex trafficking as a global transnational crime has not yet been proven effective for a multitude of reasons that will be

enumerated in this paper. This paper begins with a quantitative analysis of the global sex trafficking trade in order to facilitate the understanding of the size, geographical sphere and global scope of the phenomenon. It then examines the progress that has been made mostly in the past decade to regulate, legislate and empower global and domestic state and non-state actors to fight against sex trafficking. The paper highlights some of the main challenges and obstacles to achieve this goal and outlines some of the solutions that are emerging from global forums dedicated to the cause such as the *UN.Gift Vienna Forum to Fight Human Trafficking.* (February 13-15, 2008). Finally the paper summarizes the conclusions that can be derived from the research including the author's own opinions as formulated during the research and analysis process.

## III. The bare facts - A Quantitative Summary

The lack of reliable quantitative information or understanding regarding the scope and development of the crime of sex trafficking around the world continues to be a major challenge. Even basic criminal justice data on trafficking offences is not publicly available for many countries and regions of the world, making the compilation of accurate statistics on human trafficking elusive and unreliable. That notwithstanding, high level statistics offered mainly by U.N. agencies paint a horrific picture. Following are statistics gathered by UN.Gift (Global Initiative to Fight Human Trafficking) as of 2007:

An estimated **2.5 million people** are in forced labor (including sexual exploitation) at any given time as a result of trafficking[1]

- **1.4 million** – 56% - are in Asia and the Pacific
- **250,000** – 10% - are in Latin America and the Caribbean
- **230,000** – 9.2% - are in the Middle East and Northern Africa
- **130,000** – 5.2% - are in sub-Saharan countries
- **270,000** – 10.8% - are in industrialized countries
- **200,000** – 8% - are in countries in transition[2]

**161 countries** are reported to be affected by human trafficking by being a source, transit or destination country[3]. People are reported to be trafficked from **127 countries** to be exploited in **137 countries**, affecting every continent and every type of economy[4] The majority of trafficking victims are **between 18 and 24 years** of age[5] An estimated **1.2 million children** are trafficked each year[6] **95% of victims experienced physical or sexual violence** during trafficking[7] **43%** of victims are used for **forced commercial sexual exploitation**, of whom **98** per cent are women and girls [8] **32%** of victims are used for **forced economic exploitation**, of whom 56 per cent are women and girls[9] Many trafficking victims have at least **middle-level education**[10]. The estimated annual trafficking business worldwide is in the range of **$7-12 billion.** The U.S. Government budget for efforts against human trafficking in 2007 was only **$50 Million.** This is a miniscule amount and is the most revealing testament to the ineffectual

efforts to eradicate sex trafficking and its low priority on the national agenda.

## IV. Progress – What is and what is not being done?

In the past decade significant progress has been made in terms of "legitimizing the illegitimate" nature of sex trafficking. In fact it was not until the adoption of the UN Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children of November 2000 that "trafficking in persons" has been universally recognized as a crime. Since then legislative, policy and treaty initiatives have created an international legal and policy framework to address the issue of sex trafficking. In *The Saga of Susanna,* Susan Tiefenbrun describes the multi faceted scope of the Trafficking and Violence Protection Act of 2000. This includes a balanced focus on the Prevention, Protection and Prosecution aspects of the phenomenon. Through this legislation the United States has attempted to set an example for the world and demonstrate its moral leadership on matters of human trafficking. This is believed to be the only comprehensive legislation that focuses not only on the domestic aspects of the fight against sex trafficking, but also includes sanctions and incentives for source countries to do their share. The U.S. has since continued to take the lead in terms of enabling a legislative framework to more effectively combat sex trafficking, On December 19, 2003. The U.S. Congress passed the Trafficking Victims Protection Reauthorization Act of 2003 that established a private right of action for persons who are trafficked to the United States. This has become a powerful tool for the use of civil litigation as a strategy for compensating victims

of trafficking in the U.S. and in so doing punishing the perpetrators of this crime not only in criminal but also in civil court. The United Nations has taken an important step in the fight against sex trafficking. The General Assembly adopted the United Nations Convention Against Organized Crime. The Convention which came into force on the 23 September 2003, calls upon countries to take measures against organized crime and to cooperate together. Europe has followed the example of the U.S. The Council of Europe Convention on Action against Trafficking in Human Beings (CETS N° 197) was adopted by the Committee of Ministers on 3 May 2005 The convention on Action against Trafficking in Human Beings provides measures to discourage the demand of all forms of exploitation of persons, especially that of woman and children that leads to trafficking (Article 6). It encourages countries to adopt or strengthen legislative, administrative, educational, social, cultural or other measures to raise awareness about trafficking, identify the root causes of demand and to target campaigns and measures against the phenomenon. But legislation, policy, protocols and treaties can only serve as a framework for effective prevention, protection and prosecution. Unfortunately curtailing sex trafficking has not made it even close to the top of the political agenda in most destination states and has not been given any consideration in states of origin. In the meantime the demand for sex trade services mainly in the Western world has only intensified fuelled largely by the World-Wide-Web. Throughout the past decade, men have used the Internet to accelerate and normalize the sexual exploitation of women and children. New communication and information technologies allow both consumers and

"producers" alike access to explicit multi-media sexual content, contacts and connections from the comfort of their own homes, all at a low cost and even lower risk of being discovered let alone apprehended. Criminal syndicates use the Web to advertise various forms of sexual services and to recruit unsuspecting women for these purposes. Sex tourism and is also largely responsible for the creation of human sex trafficking as such a large money-making industry. The tourism industry pressures various governments to ease their border controls. When these become more lax it is far easier to move people from one country to the next. This is particularly true in the European zone. (source: Donna Hughes, *"Pimps and Predators on the Internet – Globalizing the Sexual Exploitation of Women and Children"* (CATW, 2009).

## V. The Road to Effectiveness

In his book The Natashas (V. Malarek, *The Natashas: inside the new global sex trade*, Viking, Canada The Penguin Group, 2003) the author offers a "ground zero" look at the sex trafficking industry. Away from the dry language of legislation, the rhetoric of international conferences and human rights advocacy. The book effectively describes the cruelty, abuse and brutality toward women inside the sex trafficking industry. The progression of the sex trafficking industry is referred to as "Four Waves". The first wave came from South East Asia in the 1970s and was composed mostly of Thai and Philipino women. The second wave arrived from Africa in the 1980s from countries such as Ghana and Nigeria. The third wave from Latin America followed right behind from countries such as Columbia, Brazil and the Dominican Republic. The world has not just discovered

that women were kidnapped, sold and raped for many years now. The point is that today sex trafficking is flourishing as never before owing mainly to the fourth wave. This wave originates from Central and East Europe and is part of the economic, ideological and moral collapse of the Soviet Union and its East European allies. In the words of the author: "What is most disturbing is that sex trafficking is a man-made disaster that can be prevented. Yet the world continues to ignore the plight of these women and girls. The time has come to stop the traffic". The question remains though as to what needs to be done to respond to this cry? The generic answers are quite simple:

1. reduce the vulnerability of victims (care & repatriation, education, initiatives to address poverty)

2. increase the risks to traffickers (legislation, convictions, harsher punishments)

3. lower demand for the goods and services of modern-day slaves (prosecuting users, education)

However many challenges and obstacle remain. While consensus is building up in the international community by both states and non-state actors as illustrated through the initiation and endorsement of international protocols and legislation, the battle on the ground is still in its infancy.

## V-1 Major Challenges

This publication (K. Kempadoo, J. Doezema, *Global sex workers: rights, resistance, and redefinition,* Routledge; 1 edition, 1998) refers to the stigma generally attached to the sex industry as illegal, sleazy and immoral and affecting

only women which immediately drops it down on the awareness scale of states and citizens. The "elevation" of this phenomenon to a social, human rights and workers rights issue similar in nature to illegal migrant workforces in other industries remains a challenge. Sex trafficking is a worldwide crime and it is almost always a form of organized crime. Traffickers face few risks and can earn huge profits by taking advantage of large numbers of poor vulnerable people. Finally research on the nature and scope of trafficking in persons is considered inherently difficult as it involves hidden populations of both victims and perpetrators. Obtaining accurate knowledge of identified cases of victims of sex trafficking is indispensable and likely the chief obstacle to finding effective solutions.

### V-2 Possible Solutions

The Vienna Forum Report addresses some of the more important actions required to improve the effectiveness of the global fight against human trafficking in general and sex trafficking in particular. (*The United Nations Global Initiative to Fight Human Trafficking (U.N. GIFT) a way forward to combat human trafficking.* United Nations, New York, 2008) A number of recommendations were made to help ensure that the media became a positive and powerful ally in fighting human trafficking. For (see page 24 of the report) Actions were also recommended in establishing a victim-centered, multi-agency approach to human and sex trafficking prevention. (see page 27 of the report)

The Vienna Forum report is a must read for all who are interested in understanding and contributing to the eradication of sex trafficking Yet only time will tell whether or not the international community has the political will, courage and has set as its goal the eradication of human (and sex) trafficking. As a result of the research the author begs to remain skeptical as to this outcome.

## VI. Conclusions

The author concurs with the observations of Richard Poulin, sociologue (Richard Poulin, sociologue *Globalization and the Sex Trade : Trafficking and the Commodification of Women and Children* . (Canadian Women Studies/Les cahiers de la femme (Vol. 22, n° 3-4, December 2003 : 38-43) where he concludes that "The increasing size and centrality of the global sex industry helps explain why so many groups and agencies are adopting normalizing regulatory approaches in their attempts to address its harms. However, this strategy is deeply flawed. The rapidly expanding international sex market exploits above all women and children, especially members of marginal and minority groups in the Third World and in the former "socialist" countries. This "leisure industry" is based on the systematic violation of human rights, for it requires a market in commodified human beings and the complicity of pimps and clients who are prepared to buy and sell women and children." Mr. Poulin blames the new neo-liberal approach to commodification of many aspects of life as the culprit but fails to offer in the author's opinion a more effective strategy to combat the phenomenon. The author concludes that thus far the methods to effectively achieve the 3 "P" of Prevention,

Protection of the victims and Prosecution of the perpetrators have largely been ineffectual. Effective solutions and material progress can only be achieved by elevating the political priority of human trafficking on the agenda of such forums as the G8 or G20. This may require an intensive awareness campaign by the mainstream media possibly by linking sex trafficking to already high priority agenda items such as international security and abuse of human rights.

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Notes:

1 International Labour Organization, *Forced Labour Statistics Factsheet* (2007)
2 International Labour Organization, *Forced Labour Statistics Factsheet* (2007)
3 United Nations Office on Drugs and Crime, *Trafficking in Persons: Global Patterns* (Vienna, 2006)
4 United Nations Office on Drugs and Crime, *Trafficking in Persons: Global Patterns* (Vienna, 2006)
5 International Organization for Migration, *Counter-Trafficking Database, 78 Countries, 1999-2006* (1999)
6 UNICEF, *UK Child Trafficking Information Sheet* (January 2003)
7 The London School of Hygiene & Tropical Medicine, *Stolen smiles: a summary report on the physical and psychological health consequences of women and adolescents trafficked in Europe* (London, 2006)
8 International Labour Organization, *Forced Labour Statistics Factsheet* (2007)
9 International Labour Organization, *Forced Labour Statistics Factsheet* (2007)
10 International Organization for Migration, *Counter-Trafficking Database, 78 Countries, 1999-2006* (1999)

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1. Susan Tiefenbrun, *The Saga of Susanna A U.S. Remedy for Sex Trafficking in Women – The Victims of Trafficking and Violence Protection Act of 2000*, Utah L. Rev. 107, 2002.
2. *The United Nations Global Initiative to Fight Human Trafficking (U.N. GIFT) a way forward to combat human trafficking.* United Nations, New York, 2008
3. P. Kotiswaran, J.Halley, H.Shamir, and C. Thomas, *From the International to the Local in Feminist Legal Responses to Rape, Prostitution/Sex Work, and Sex Trafficking: Four Studies in Contemporary Governance Feminism.*' Harvard Journal of Law & Gender 29 (2), 2006.
4. B.Young , *Trafficking of Humans Across United States Borders: How United States Laws Can Be Used to Punish Traffickers and Protect Victims Fall,* Georgetown Immigration Law Journal, 73, 1998
5. V. Malarek, The Natashas: inside the new global sex trade, Viking, Canada The Penguin Group, 2003
6. K. Kempadoo, J. Doezema, *Global sex workers: rights, resistance, and redefinition,* Routledge; 1 edition, 1998.

7. *UN Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children*, United Nations, 2000.
8. Richard Poulin, sociologue *Globalization and the Sex Trade : Trafficking and the Commodification of Women and Children* . First publication in Canadian Women Studies/Les cahiers de la femme (Vol. 22, n° 3-4, December 2003: 38-43).
9. D. Hughes, *The Internet and Sex Industries: Partners in Global Sexual Exploitation,* Technology and Society Magazine, Spring 2000.